

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUBC008807: SILVESTRE ZARATE vs GENERAL MOTORS LLC

07/29/2026 in Department 44

Motion for Attorney Fees/Costs Fees Costs, and Expenses

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff Silvestre Zarate’s (“Plaintiff”) Motion for Attorney’s Fees, Costs, and Expenses

Tentative Ruling:

Plaintiffs’ Motion for Attorneys’ Fees, Costs, and Expenses is GRANTED as follows: attorney fees in the total amount of \$26,325, and costs in the total amount of \$2,985.36, for a total award of \$29,310.36.

Discussion:

The prevailing car buyer in a Song-Beverly Warranty Act lawsuit “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Code Civ. Proc., § 1794, subd. (d); (*Reck v. FCA US LLC* (2021) 64 Cal.App.5th 682, 691 [“A buyer who prevails in an action under the Song-Beverly Act may also recover reasonable attorney fees. (citing § 1794, subd. (d)).”]) The burden is on the prevailing buyer to establish that the fees incurred were allowable, reasonably necessary to the conduct of the

litigation, and were reasonable in amount. (*Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 507.)

While section 1794 entitles a prevailing plaintiff to a mandatory fee award, the amount of the award is fixed within the court's broad discretion. (*Reck v. FCA US LLC* (2021) 64 Cal.App.5th 682.) In evaluating the fee request, a trial court "must eschew any rubber stamp approval in favor of an independent evaluation" to determine the hours claimed were reasonably expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309.) The lodestar method under the framework of *Ketchum v. Moses* is used to calculate attorney fee awards in lemon law cases. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132. citing *Serrano v. Priest* (1977) 20 Cal.3d 25, 49 [contingent nature of the fee, risk of nonpayment undertaken at outset of representation, novelty and difficulty of questions presented, skill displayed in litigating the matter, extent to which the engagement precluded other employment, and results achieved for the class]; see also *Reck, supra*, at p. 691.) The trial court "is the best judge of the value of professional services rendered" in that judge's court. (*Serrano v. Priest, supra*, 20 Cal.3d at p. 49.)

Here, Plaintiff seeks \$37,011.30 in attorney's fees and \$2,985.36 in costs in connection with his status as a prevailing party following settlement of his consumer lawsuit under the Song-Beverly Warranty Act. Plaintiff filed the lawsuit on May 11, 2023. Plaintiff's attorneys are Nancy Zhang and Corinna Jiang, with Consumer Law Experts, PC. Both attorneys practice exclusively in Song-Beverly related litigation; Ms. Zhang since 2018 and Ms. Jiang since 2021. Ms. Zhang has been a licensed attorney since 2013 and billed this file at an hourly rate of \$500-530. Ms. Jiang has been a licensed attorney since 2019, and her hourly rate was \$415-\$430 for this matter. In addition, certified paralegal David Gomez billed time on this file at a rate of \$200-215 per hour.

This matter settled on April 25, 2025, when Plaintiff accepted Defendant's Code of Civil Procedure section 998 offer for \$88,000 exclusive of attorney's fees and costs, and the settlement amount represents the repurchase value of the vehicle plus some civil penalties. During the pendency of the case, the parties engaged in some basic written discovery, and the matter came on for hearing before this Court for some routine hearings; the initial case management conference, two discovery motions filed by Plaintiff that were heard on the same day, and a trial setting conference. In addition, Plaintiff prepared this motion.

In support of the motion, Ms. Jiang submits her declaration to which she attaches Plaintiff attaches 675 pages of materials to include Exhibit 5 that comprises 61-pages of billing activities.¹

¹ The Rules of Court govern the length and format of law and motion papers, to include that conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules 2.256(b) and 3.1110(f).) Counsel's compliance with these rules greatly aids in the review of papers filed with the Court and also avoids delay in the Court's issuance of a decision on the merits. Noncompliance with these rules may be cause for the Court to disregard noncompliant materials. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial court has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d)].) Neither party filed compliant papers. The Court will, notwithstanding these deficiencies, rule on the papers. Going forward, the Court admonishes counsel to comply with the Rules of Court. For this motion, the Court declines to parse through

In total, Plaintiff's counsel billed 92.57 hours to this file, not including time to be incurred in connection with the filing of a reply brief for this motion, or attendance at the hearing on this motion.

Defendant opposes the time spent as unreasonable, noting that Plaintiff's counsel has filed some 142 fee motions in cases filed against Defendant GM, and that these motions, much like the complaints, discovery, and other drafted documents by Plaintiff's counsel, are from templates that are used over and over again. Notwithstanding the repetitive nature of Plaintiff's counsel's work and use of document templates, Plaintiff's counsel billed 6.5 hours to prepare one set of discovery requests, 2.1 hours to review document production of documents common to Song-Beverly Act litigation, 3.8 hours to prepare one set of discovery responses, 16.1 hours to prepare a motion to compel further responses to discovery and related filings (which again, are the same or substantially similar in every case), and 7.9 hours to prepare the cost memorandum and fee motion. In addition, Defendant takes issue with 11.55 hours spent for interoffice communications among attorneys, and seeks to have Mr. Gomez' time struck entirely, arguing that Mr. Gomez billed 13.2 hours for secretarial and administrative tasks. In total, Defendant asks this Court to reduce the number of hours from 92.57 by 50.25 hours, for a total of 42.32 hours.

Defendant also contends that Plaintiff's counsels' hourly rates are excessive, seeking to reduce Ms. Zhang's rate, \$415- \$430, and Ms. Jiang's rate, \$415-\$450 to a median hourly rate of \$337.

The Court has now reviewed the papers filed in support of and in opposition to the motion, and exercises its discretion based thereon, and based on the Court's knowledge of reasonable attorney fees in the Ventura County legal community for attorneys practicing for 13 and 6 years respectively, to award a reasonable blended hourly rate of \$450. In addition, the Court finds that the amount of time claimed by Plaintiff's counsel is not reasonable. While the Plaintiff in this case can expect to be advantaged by Plaintiff's counsel's expertise and prior work that is similar, Plaintiff's counsel's time spent on various tasks as indicated by Defendant, was excessive. Instead, the Court finds a reasonable number of hours for this routine and lightly litigated matter to be 55 hours. Accordingly, the Court awards \$24,750 in attorney fees. The court additionally allows 3.5 hours in connection with the preparation of the reply brief and attendance at the hearing for an additional amount \$1,575, for a total award of \$26,325.

Plaintiff filed a memorandum of costs on September 30, 2025, that reflects an amount sought of \$2,985.36. Defendant did not file a motion to tax costs, nor does Defendant object to any of the costs sought by way of its opposition to this motion.

Plaintiff's counsel shall give notice.

675 pages of materials, or to conduct an exhaustive line-by-line review of the 61 pages of billing statements that were not summarized or otherwise broken down by Plaintiff in a manner readily digestible for the reader.